

**TENTATIVE RULINGS**  
**September 23, 2026**

|     | Case Name                                                                       | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
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| 101 | 2024-01407287<br><br>Mirrafati vs.<br>California<br>Receivership<br>Group, Inc. | <p><b>1. Demurrer to Amended Complaint</b><br/><b>2. Case Management Conference</b></p> <p>The general demurrer by Defendants California Receivership Group, Inc. (“Receivership Group”) and Mark Adams (“Adams”) (collectively, “Defendants”) to the three causes of action alleged in the Second Amended Complaint (“SAC”) filed by Plaintiffs Sayed Mirrafati and Mira Properties, LLC (collectively, “Plaintiffs”) is overruled.</p> <p>The Court sets this matter for a 5 day jury trial on August 9, 2027 at 9:00 a.m. in Department C27. All parties are ordered to comply with OCSC Local Rule 317, this department’s procedures, and pretrial order, each of which can be found on the Orange County Superior Court website.</p> <p>In addition, Department C27 utilizes the Orange County Superior Court Electronic Evidence Portal for all court and jury trials. All parties are ordered to review and comply with the Orange County Superior Court Civil Unlimited - Electronic Evidence Protocol, which can also be found on the Orange County Superior Court website.</p> <p>A mandatory settlement conference is scheduled for July 9, 2027 at 8:30 a.m. in Department C27. All parties and counsel are ordered to be personally present. Further, all parties must comply with OCSC Local Rule 316.</p> <p>The clerk is ordered to give notice.</p>                                                                                                                                                                                                                           |
| 102 | 2025-01486130<br><br>Caruso vs. State<br>of California                          | <p><b>1. Demurrer to Amended Complaint</b><br/><b>2. Motion to Strike Portions of Complaint</b><br/><b>3. Case Management Conference</b></p> <p><b><u>Demurrer and Motion to Strike</u></b></p> <p>The general demurrer by Defendant State of California acting by and through the Department of Transportation (erroneously sued as Defendant State of California and California Department of Transportation) (“Defendant”) to the second and third causes of action alleged in the Second Amended Complaint (“SAC”) filed by Plaintiff Peter Caruso (“Plaintiff”) is overruled in part and sustained in part with leave to amend. Defendant’s motion to strike portions of Plaintiff’s SAC is denied in part and granted in part.</p> <p>Defendant’s unopposed request for the Court to take judicial notice of the complaint and right to sue notice dated April 30, 2025 is granted. (Evid. Code, § 452, subd. (c); <i>see, Abikar v. Bristol Bay Native Corp.</i> (S.D. Cal. 2018) 300 F.Supp.3d 1092, 1099.)</p> <p>Defendant’s unopposed request for the Court to take judicial notice of the complaint filed in a 2022 case is granted. (Evid. Code, § 452, subd. (d).) However, the Court may not take judicial notice of the truth of the matter stated in the documents. (<i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as</p> |